

Liquidated Damages Assessment — Sub-Clause 15.4

Kestrel Flyover Interchange Project — Package KFI-2

Document Reference: LDA-KFI2-001
Date: 15-Sep-2021
Contract No.: KMDA/KFI2/CW/2019-04
From: Ashgrove Infrastructure Consultants
To: Kaldera Metropolitan Development Authority
CC: Rennick Builders Ltd.

Subject: Liquidated Damages Assessment — Period from Time for Completion to Termination

This assessment calculates liquidated damages accrued under Sub-Clause 15.4, for the period between the Time for Completion and the date of termination, for the purposes of Employer's Final Account EFA-KFI2-001.

Item	Value
Time for Completion (Contract Data Section 3)	02-Jun-2021
Date of termination (Termination Certificate ETC-KFI2-001)	21-Jun-2021
Gross period	19 days
Less: credit for Ramp C utility relocation delay (EFA-KFI2-001, para 4)	(5 days)
Chargeable period	14 days
Delay Damages Rate (Contract Data Section 7)	KLD 21,600/day
LIQUIDATED DAMAGES DUE	KLD 302,400

The chargeable period of 14 days is well within the Maximum Delay Damages figure of KLD 3,600,000 (Contract Data Section 7); no cap applies. This assessment does not extend liquidated damages beyond the date of termination; Sub-Clause 15.4 credits the Employer for delay damages only to that date, not to any later date on which the Works may eventually be completed by others.

The 5-day utility credit reflects the genuine, limited Ramp C delay recorded in Progress Assessment EPA-KFI2-001 and accepted in EFA-KFI2-001, and is not extended to any part of the shortfall at other elements of the Works, which the Engineer's determination attributes to the Contractor's own performance.

Prepared by: Ashgrove Infrastructure Consultants